

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-RMG-MGB

**DEFENDANTS' REPLY IN SUPPORT OF DEFENDANTS'
MOTION TO COMPEL PLAINTIFF'S DISCOVERY RESPONSES**

Pursuant to Rules 34 and 37 of the Federal Rules of Civil Procedure and Local Civil Rule 37.01, Defendants Curtiss Wright Electro-Mechanical Corporation, Stephanie Lanier, and Shanie Sablitsky (collectively "Defendants"), by and through their undersigned counsel, respectfully submit this Reply in Support of their November 5, 2025, Motion to Compel Plaintiff's Discovery Responses (ECF No. 207). Plaintiff's Response in Opposition (ECF No. 213) largely ignores Defendants' arguments, makes unsupported assertions of facts, and reasserts objections that Plaintiff made in her deficient discovery responses. For the reasons discussed further below and in Defendants' Motion to Compel, the Court should compel Plaintiff to respond fully and without objection to each of Defendants' discovery requests. Defendants respectfully ask that the Court instruct Plaintiff that if she continues to fail to respond to discovery that it will strike her request for damages. Finally, Defendants also respectfully ask the Court to order that if Plaintiff objects to producing materials on the basis that they are not relevant to the claims and defenses in the actions, Plaintiff be barred from introducing those to support her claims.

I. Plaintiff Cannot Satisfy Her Discovery Obligations By Submitting a Flash Drive to the Court.

Plaintiff's representations to the Court about the flash drive are false. While it is true the Plaintiff sent a flash drive to the Court, she has not made any effort to facilitate access for Defendants. Plaintiff states in her Response: "Plaintiff has repeatedly informed Defendant that the complete materials are available through the Clerk of Court or by formal request for inspection." (ECF No. 213 at 1.) Plaintiff has never offered these materials for inspection; in fact, Plaintiff stated the opposite: "As previously noted, the social media videos were provided on a flash drive submitted to the Court. That submission satisfied my discovery obligations regarding those materials. It is not my responsibility to provide the Defendants with direct access to my personal social media accounts. If you are unable to retrieve a copy of the flash drive from the Clerk's Office, you may coordinate with the Court to obtain access." *See* Ex. A - October 23 email from Debra Nelson. Plaintiff believes that by mailing a flash drive to the Court with all of her documents on it she has no responsibility to produce responsive documents to Defendants. *See* Ex. B – October 15 email from Debra Nelson. That is not the case.

Plaintiff states that Defendants made no effort to retrieve the flash drive or request access to the Court-held materials. Again, Plaintiff makes a representation to this Court that she objectively knows is untrue at the time that she makes it. On October 27, per Plaintiff's instruction, Defense Counsel contacted the Court to inquire about whether there was an avenue to access the files that Plaintiff sent to the Court on the flash drive. Defense Counsel was informed that this would not be possible, and Defense Counsel promptly sent Plaintiff a deficiency letter on November 3 stating, "We have contacted the Court to request a copy and are advised that the Court will not make a copy and will not release that flash drive because you've submitted to the Court." *See* Ex. C – Deficiency Letter, Request No 3. Plaintiff was aware that Defense Counsel contacted

the Court to attempt to obtain the flash drive and/or the media contained therein, and was unsuccessful, before filing her Response. In any event, as stated in Defendants' Motion, Plaintiff cannot satisfy her discovery obligations by submitting her files to the Court on a flash drive. She must independently produce them to Defendants.

II. Plaintiff's Therapy Records Are Directly Relevant to Her Claim for Damages and Should be Produced.

Plaintiff states in conclusory fashion that her business and financial records, tax returns, medical and psychotherapy records, resume, and employment information are irrelevant in invasive and seek disclosure of materials that "have no bearing on the claims or defenses in this action." (ECF No. 213 at 2.) In fact, all of these items are particularly relevant to the claims she has asserted and the damages that she is seeking.

A. Plaintiff's Claim for Emotional Distress Damages Places Her Therapy Records at Issue and She Cannot Avoid Discovery By Claiming that Her Testimony of Her Injuries Is Sufficient

In her Fourth Amended Complaint, Plaintiff seeks damages for severe emotional distress, anguish and suffering, inconvenience, mental anguish, humiliation, embarrassment, personal indignity, and loss of enjoyment of life. (ECF No. 79 at ¶¶ 79, 83, 95, 136, Prayer for Relief.) During her deposition, Plaintiff made clear that the overwhelming majority of damages that she is claiming in this case are emotional distress damages, but yet she adamantly refuses to produce the only records that bear on those alleged damages:

Q: How much money are you looking to get out of this case, Ms. Nelson?

A. A lot. Considering everything that I've gone through in the last two years, I'm looking to be well compensated and it's mostly due to the stress and the constant worry of who's listening to me, who's following me. All my thoughts of having any privacy has been robbed. I don't have any confidence that any time I get on the phone I'm not being

listened to. And the same thing with the emails. They ain't blocking it anymore, but I don't have any confidence that anything I do is private. And then the attempts to try to set me up with these random guys messaging me. Come on now, it's not going to happen. So my whole life has changed because of this?

Q. But how much money are you looking for?

A. I'm still debating, but it's going to be a lot.

Q. And most of that comes from, you said, the stress you've experienced. Is that like emotional distress type damages?

A. Oh, definitely, emotional distress.

(Ex. E, Nelson Dep. Tr. 230:6-231:2.) By claiming that her employment with Curtiss-Wright and subsequent termination caused her significant emotional damages for which she seeks to collect financial remuneration, Plaintiff has put her mental health at issue and Defendants are entitled to discovery on that issue because she is planning to ask the jury to award her "a lot" of damages for alleged emotional distress. *See, e.g., Stokes v. IKEA US Retail, LLC*, 2023 U.S. Dist. LEXIS 24800, *6-7 (D. Md. Feb. 13, 2023) ("Even in cases where a plaintiff alleges 'garden variety' compensatory damages or emotional distress, courts have found that 'medical and psychological information sought by [] interrogatories and requests for production are relevant as to both causation and the extent of plaintiff's alleged injuries and damages.'" (quoting *Carpenter v. RES-CARE Health Servs*, 2013 U.S. Dist. LEXIS 57928 at *2 (S.D.W. Va. Apr. 23, 2013) (quoting *Sheffield*, 2007 U.S. Dist. LEXIS 43070 at *4 (M.D.N.C. Jun. 13, 2007) (collecting cases in which courts deemed medical records relevant in light of a plaintiff alleging emotional distress or garden variety compensatory damages))).

Citing *Jaffee v. Redmond*, 518 U.S. 1 (1996), Plaintiff argues that her therapy records are barred from discovery by the psychotherapist-patient privilege. Even assuming that Plaintiff's provider is a licensed therapist and that the privilege exists in the Fourth Circuit and would otherwise apply, Plaintiff has waived the privilege by intending to use evidence of her mental health to support her claims, including a "summary letter from her therapist instead of full files" (ECF No. 210 at 2). See *Stokes*, 2023 U.S. Dist. LEXIS 24800, at *8-15 (discussing various approaches courts have taken to waiver of the psychotherapist privilege but noting that even courts that have taken a narrow view of waiver require production of therapist records when plaintiff intends to use the therapist to support her claims for damages). As such, her records of treatment with her therapist are discoverable and Plaintiff should be directed to sign the psychotherapy records release and authorization that she objected to signing in response to RFP No. 9 to ensure that her provider releases her records.¹ See *Coffin v. Bridges*, 1995 U.S. App. LEXIS 34729, 1995 WL 729489, *3 (4th Cir. 1995) (affirming dismissal of complaint for injuries and mental anguish because plaintiff refused to provide mental health care records); *Crotty v. Windjammer Vill. of Little River*, 2017 U.S. Dist. LEXIS 36128 (D.S.C. March 14, 2017) (ordering a pro se plaintiff to sign a release to provide her medical information because the pro se plaintiff has placed her health at issue by alleging that Defendant's actions caused her health problems and [she is] seeking damages for those health problems").

B. Plaintiff's Tax Returns, Subsequent Employment Information and Earnings, and Business Earnings Are Also Relevant to Her Damages Claims.

In addition to emotional distress damages, Plaintiff also seeks damages for lost wages. (ECF No. 79 at ¶¶ 90, Prayer.) The amount of income that she has received from subsequent

¹ To the extent Plaintiff is concerned about the confidentiality of her medical records, Defendants are agreeable to entering into a confidentiality agreement to protect the confidentiality of those records.

employment, from her business, and from other sources directly impacts the amount of lost wages she can claim in this case and is discoverable. *See, e.g., Koukuntla v. Toll Bros.*, 2025 U.S. Dist. LEXIS 49247, *12-13 (E.D.N.C. Mar. 18, 2025) (collecting cases ordering production of tax returns as relevant to mitigation and noting “Plaintiff seeks damages for lost wages and loss of professional opportunities, as well as emotional distress damages. . . .Plaintiff’s income prior to and subsequent to Defendant’s failure to hire Plaintiff are relevant to his damages claim and the issue of mitigation or offset.”). She fails to cite any authority or make any compelling argument to the contrary.

C. Plaintiff’s Resume Is Discoverable

Plaintiff’s current resume is relevant both as to mitigation (to the extent it reflects subsequent employment or any gaps in employment) but also to the underlying claims, as Plaintiff claims that she was paid less and treated less favorably than a male co-worker. Her experience and qualifications bear directly on her pay and promotional opportunities, and so her resume is relevant and should be produced.²

Plaintiff contends that her resume, tax returns, and records of subsequent employment “have no bearing on the claims or defenses in this action.” (ECF No. 213 at 2.) As discussed above, her argument has no merit and is demonstrable of a pattern of repeated demands by Plaintiff that Defendants respond to extensive discovery while she can largely avoid any discovery with conclusory objections. For example, in the same discovery responses at issue, she stated that documents she provided to or received from the Office of the Navy Inspector General in relation to complaints that she filed against Curtiss Wright are “irrelevant to the claims or defenses in this

² Plaintiff’s baseless accusation that the undersigned counsel caused her termination from Amentum is false. According to documents that Plaintiff filed in this case, she was terminated for missing three consecutive shifts. (ECF No. 210-11.)

matter.” See Ex. D, Plaintiff’s Responses to Defendants’ First Requests for Production at Request No. 13. She withheld the complaint she filed with Navy Inspector General and then introduced that complaint as an exhibit in Antonio Coleman’s deposition, even though she objected that the document had no relevance to her claims in this case. Defendants respectfully request the Court order that Plaintiff be barred from using any evidence at summary judgment or trial that was requested in discovery but that she failed to produce.

III. Conclusion

For the reasons set forth above and in Defendants’ Motion to Compel, Defendants respectfully request that the Court compel Plaintiff to respond fully and without objection to each of Defendants’ discovery requests. Defendants respectfully ask that the Court instruct Plaintiff that if she continues to fail to respond to discovery, it will strike her request for damages. Finally, Defendants also respectfully ask the Court to order that if Plaintiff continues to fail to produce materials requested in discovery that she cannot introduce those documents as evidence on summary judgment or a trial to support her claims.

Respectfully submitted this 13th day of November, 2025.

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

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DEBRA NELSON,

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CERTIFICATE OF SERVICE

The undersigned certifies that on November 13, 2025, a copy of the foregoing **DEFENDANTS' REPLY IN SUPPORT OF DEFENDANTS' MOTION TO COMPEL PLAINTIFF'S DISCOVERY RESPONSES** has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

[REDACTED]

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

Dated: November 13, 2025

EXHIBIT A

From: Debra Nelson [REDACTED]
Sent: Thursday, October 23, 2025 2:53 PM
To: Valenza, Joseph V. (Greenville)
Cc: Samples, T. Chase (Greenville)
Subject: Re: Outstanding Discovery Responses Due

Dear Counsels

Thank you for your email.

As previously noted, the social media videos were provided on a flash drive submitted to the Court. That submission satisfied my discovery obligations regarding those materials. It is not my responsibility to provide the Defendants with direct access to my personal social media accounts. If you are unable to retrieve a copy of the flash drive from the Clerk's Office, you may coordinate with the Court to obtain access.

I am currently traveling to complete service of two outstanding subpoenas that are directly related to pending discovery issues. I previously said by tomorrow but I anticipate providing my remaining responses promptly upon my return and appreciate your patience as I finalize them.

I also note that several of Defendants' discovery responses remain incomplete, and I am still waiting for sufficient production to certain of my requests. Once those are resolved, I will be in a better position to supplement as needed.

I remain committed to good-faith compliance and will keep you updated on timing.

Sincerely,
Debra Nelson

On Thu, Oct 23, 2025 at 2:25 PM Debra Nelson [REDACTED] > wrote:
by no later than tomorrow

On Thu, Oct 23, 2025 at 1:20 PM Valenza, Joseph V. (Greenville) <Joseph.Valenza@jacksonlewis.com> wrote:

Good afternoon, Ms. Nelson,

Your responses to Defendants' First Interrogatories and First Requests for Productions were due yesterday, October 22nd. Please advise when we will receive these discovery responses.

As for your earlier email that you sent a flash drive to court with certain social media videos, we do not have access to that flash drive. As a result, this information would still be considered outstanding and would need to be provided in response to Defendants' discovery requests.

As a reminder, your responses to Defendants' Second Requests for Production are due November 3rd.



Joseph V. Valenza

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EXHIBIT B

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, October 15, 2025 9:09 PM
To: Samples, T. Chase (Greenville); Valenza, Joseph V. (Greenville)
Subject: Nelson v. Curtiss Wright Electro Mechanical Corp., et al

Subject: Response to Requests for Production Nos. 1, 3, and 21

Dear Mr. Samples and Mr. Valenza,

In response to Defendants' First Set of Requests for Production (Nos. 1, 3, and 21), the video referenced in your request has already been filed with the Court as part of the official record. It was submitted on **May 13, 2025**, as **ECF No. 40**, on a flash drive.

That video is approximately 30 minutes long and is accessible through the Court's docket and therefore does not require any further production. The video was created to document events I personally experienced and contains no slanderous or defamatory content.

Per the advice of my former attorney, **Bonnie Hunt**, I removed the video from all of my social media accounts to prevent potential misuse or misrepresentation. Since the video is already part of the court record and no other relevant videos or posts exist, there is **no basis for Defendants to access my personal social media accounts**.

Please let me know if you have any difficulty locating the video in the docket.

Sincerely,

Debra Nelson

Pro Se Plaintiff
[REDACTED]

EXHIBIT C



Jackson Lewis P.C.

15 South Main Street, Suite 700

Greenville SC 29601

(864) 232-7000 Main

(864) 235-1381 Fax

jacksonlewis.com

November 3, 2025

Ms. Debra Nelson

[REDACTED]
[REDACTED]
[REDACTED]

Re: Debra Nelson v. Curtiss Wright Electro Mechanical Corp. et al.
Case No. 2:25-cv-00405-RMG-MGB

Ms. Nelson:

We are writing to address the deficiencies in your production and responses to Defendants' First Requests for Production and First Set of Interrogatories that were served on you on September 22, 2025, and were due on October 22, 2025. We received your responses on October 23 and October 25. Your responses are deficient and we ask that you promptly supplement them or we will file a motion to compel with the Court.

In the last month alone, Defendants have timely responded to four sets of written discovery—a fifth is on the way—and produced eight witnesses for deposition; and you had filed multiple motions with the court, some prematurely, seeking documents that Defendants do not possess and to produce witnesses that you have been advised are on leave. Defendants have expended significant resources and effort to comply with your discovery requests in a timely manner.

Now, in response to Defendants' first set of routine discovery requests, not only were your responses served late, but you have objected to producing documents without a good faith basis. For example, you contend that producing a copy of your current resume is "overly broad and seeking information for the purposes of harassment." There is no good faith basis to claim that requesting your current resume, a single document, is "overbroad;" and because a central claim of this lawsuit is that you were discriminated against because a white male comparator was promoted and paid more than you despite the fact that you were more qualified and had more experience, asking for your current resume as evidence of that experience and qualifications is not harassment. You objected to each request on the basis of attorney-client privilege despite the fact that no request seeks privileged information and you are not represented by an attorney. You have also objected to producing financial and medical documentation on the basis that such information is private even though such information is necessary to evidence your damages claims. There is no legitimate reason to withhold this information which speaks directly to *your* claims.

Please consider this deficiency letter as our good faith attempt to meet and confer as required by Rule 37(a)(1). Please supplement these deficient responses by 12:00pm on November 5, 2025, to cure these deficiencies to avoid a Motion to Compel.

I have outlined below the deficiencies in each of your responses.

REQUEST NO. 1: Produce copies of any communications or documents between you and any person (except for your prior attorney) regarding the claims and allegations in your lawsuit. This request includes, but is not limited to, emails from your personal email account(s), text messages from your phone, messages on social media, and any documents exchanged.

Your Response: All responsive communications and recordings are already produced and filed at ECF 177 and ECF 40.

You have claimed multiple times that you have received information about witnesses and other information in this lawsuit. Most recently on Sunday, October 19, you stated you received information about Jeff Womack returning to work, which was incorrect, and threatened to file a second Motion to Compel if he was not produced for deposition. Such communications (and any others you have had with individuals about your claims in this lawsuit) are relevant and should be produced.

REQUEST NO. 3: Produce all audio and video recordings that relate to your employment with Defendant Curtiss-Wright or your claims in this lawsuit.

Your Response: All responsive communications and recordings are already produced and filed at ECF 40.

Defendants do not have access to the flash drive that you sent the Court. We have contacted the Court to request a copy and are advised that the Court will not make a copy and also will not release the flash drive because you've submitted it to the Court. You are obligated to maintain these files and to produce them when requested directly to Defendants. You cannot avoid discovery by putting documents outside of your possession. To the extent that you do not have other copies of the documents on that flash drive, it is your responsibility to retrieve your property from the Court and produce the documents and media contained on the flash drive to Defendants in response to this Request.

REQUEST NO. 6: Produce all documents supporting your allegations that Defendants' actions resulted in monetary damages (including, but not limited to, lost wages, loss of future wages, lost benefits, loss of future benefits, and litigation expenses) to you.

Your Response: Attorney fees \$2,250; consultation fees totaling \$650; lost wages from 11/15/2023 to 3/15/2024 \$22,781.44. These amounts are estimates based on records available and will be supplemented as discovery continues.

Thank you for providing these numbers. However, the Request asks for documents supporting those figures. To the extent that you have receipts, bills, or statements of work showing that you have incurred these expenses, those are examples of documents that should be produced in response to this Request.

REQUEST NO. 7: *Produce all documents relating to or supporting your allegations that Defendants' actions resulted in your suffering mental and emotional distress.*

Your Response: *Plaintiff can request a letter from her therapist to support claims of emotional distress.*

This response was due on October 22. Stating that you can produce responsive documents is not producing responsive documents. Therefore, this response is deficient. Further, during your deposition, you indicated that you were seeking significant emotional distress damages in this case, and so please produce all documents supporting your request for such damages, including medical expenses and medical records.

REQUEST NO. 8: *Produce all documents referring to, reflecting, evidencing, or commenting on your physical, mental, or emotional health or condition since April 2022 to present, including, but not limited to, all opinions, reports, communications, and files from present or prior physicians, psychiatrists, psychologists, social workers, therapists, clergy, counselors, or any other professional commenting on your physical, mental, or emotional health, including tests, test results, or evaluation reports for any tests taken, and statements of charges for services rendered.*

Your Response: *Plaintiff objects that the requests seek confidential medical information not relevant or proportional to the needs of this case and protected by HIPAA. Plaintiff will provide a summary letter from her therapist in lieu of medical records.*

You claim in Count XII of your Fourth Amended Complaint that you suffered severe emotional distress (Fourth Amended Complaint ¶142), and you are seeking compensatory damages for emotional damages, mental anguish, and loss of enjoyment of life. Information regarding your medical state from immediately before your employment with Curtiss Wright to the present is highly relevant to your claims that Curtiss Wright caused you mental and/or physical injury resulting in damages. By alleging that your employment caused you severe emotional distress resulting in damages, you placed your recent medical history at issue. This request is narrowly tailored because it only seeks medical history from April 2022, a month before you were hired by Defendant Curtiss Wright to the present. It is highly relevant to your claims and the defenses whether your medical and/or psychotherapy records show a change in medical, physical, or emotional well-being during that time frame.

REQUEST NO. 9: *Produce signed copies of the psychotherapy records authorization form and medical records authorization form attached as Attachments A and B.*

Your Response: *See Response to No. 8.*

See Defendants' Response to No. 8.

REQUEST NO. 11: *Produce all documents which reflect income, compensation, and/or earnings of any kind received by you from November 2023 through present, including documents showing wages, salary, and benefits; independent contractor income; unemployment compensation benefits; insurance payments; disability benefits; retirement benefits; annuity; pension; or any other payments you received.*

Your Response: *Plaintiff objects as overly broad and intrusive. Plaintiff has been employed since March 18, 2024, and does not possess additional responsive income or compensation records related to this action. Plaintiff will supplement if any become available.*

This is not overly broad or intrusive. You claim economic and compensatory damages because of your termination. As a result, all sources of income or compensation that you received in the period that you claim you were damaged serves to mitigate your damages and bears directly on your claimed damages.

REQUEST NO. 12: *Produce each federal and state income tax return (including W-2 forms, 1099 forms, schedules, and attachments) that you filed or intend to file from 2022 through present.*

Your Response: *Plaintiff objects that this request seeks private financial records not relevant or proportional to the needs of this case. No responsive tax returns will be produced absent a protective order. Plaintiff reserves the right to supplement if ordered by the Court.*

Your tax returns are relevant to this case because you are claiming lost wages and other compensatory damages. To the extent that you are claiming that you have lost income or suffered economic damage because of the actions of the Defendants, your financial records are highly relevant to this case.

REQUEST NO. 13: *Produce all documents that you provided to or received from, and all communication with, the Office of the Naval Inspector General in relation to any complaint that you filed against Defendant Curtiss-Wright.*

Your Response: *Plaintiff objects as irrelevant to the claims or defenses in this matter and disproportionate to the needs of the case. No responsive documents are in Plaintiff's possession.*

There is no good faith basis for objections on the grounds that documents that you provided to, or received from, and your communications with, the Office of the Navy Inspector General in relation to complaints you filed against Defendant Curtiss Wright are not relevant and disproportionate to the needs of this case. Multiple causes of action in this case, notably your Whistleblower Retaliation claim, are based on the theory that you were retaliated against for providing documents to the Naval Inspector General. These documents and communications will be key pieces of evidence related to claims and defenses in this case. Please withdraw these objections and produce these documents.

REQUEST NO. 18: *Produce a copy of your current resume.*

Your Response: Plaintiff objects as overly broad and seeking information for purposes of harassment. Plaintiff declines to produce her current resume because her present employment is unrelated to the issues in this litigation. No responsive documents will be produced absent Court order.

There is no good faith basis for you to object to a request for a current resume as “overbroad” or “harassment.” A current resume is a single document it is not overbroad. You filed an employment action in which you claim that a white male was paid more than you even though you were more experienced and more qualified. A copy of your current resume is highly relevant to your experience and qualifications. Please withdraw your objections and produce your current resume.

REQUEST NO. 19: Produce all documents obtained by you from any nonparty through a subpoena, public records request, or other formal or informal request, in connection with this lawsuit.

Your Response: Plaintiff has not obtained any documents from non-parties other than those already produced by Defendant. Plaintiff will supplement if additional documents are later obtained.

This response is deficient. You have sent out many subpoenas in connection with this lawsuit and testified in your deposition that you have received some responses. Those responses must be produced as they are relevant to your claims of Intrusion Upon Seclusion and Illegal Interception of Communications.

REQUEST NO. 21: Produce any videos or social media posts related to your employment with Curtiss-Wright or the claims in this lawsuit.

Your Response: All responsive communications and recordings are already produced and filed at ECF 40.

As noted above, Defendants do not have access to the flash drive that you sent the Court. You are independently obligated to produce this information directly to Defendants.

Interrogatory No. 5: Identify all sources of income you received since your last day of employment with Defendant Curtiss-Wright, whether via employment, short-term or long-term disability benefits, social security benefits, workers' compensation benefits, unemployment benefits, self-employment, independent contractor income, insurance payments, retirement benefits, government subsidies, or some other source, and include the amount received and the dates when you received such income.

Your Response: Plaintiff received unemployment benefits and may have cashed in her retirement account, to be verified. Any other sources of income are irrelevant

This response is insufficient and does not answer the question. First, you were asked to list the amounts and dates of such payments – which you failed to do. Second, your statement that you “may have cashed in her retirement account, to be verified” is not an acceptable answer to an Interrogatory as it does not inform Defendants as to whether that occurred. Third, other sources of income are relevant because you are claiming economic and consequential damages during this period.

Interrogatory No. 7: *State whether you have ever been a party or claimant in any type of legal action, including, without limitation, bankruptcy proceedings, foreclosure actions, workers' compensation claims, charges of discrimination, lawsuits, or other legal administrative*

Your Response: *Plaintiff objects as overbroad and irrelevant. Plaintiff filed a legal malpractice lawsuit against former attorney Bonnie Hunt, Case No. 2025-CP-10-03145.*

This interrogatory is not overbroad or irrelevant. This interrogatory seeks a finite list of litigation that you have been a party to. Furthermore, this Interrogatory seeks information relevant to this case to the extent the claims asserted by you in other lawsuits are similar to those asserted here.

Interrogatory No. 8: *State whether you have ever been arrested for, charged with, convicted of, or pled guilty or no contest ("conviction") to any crime, and if so, indicate: a) the crime for which you were arrested, charged, or convicted; b) the facts resulting in you being charged with the crime for which you were arrested or convicted; c) the dates of all conviction(s); d) the jurisdiction(s) in which you were convicted; and e) the sentence(s) imposed against you as the result of such conviction(s).*

Your Response: *Plaintiff objects as irrelevant and not proportional to the needs of this case under Rule 26(b)(1).*

As a Plaintiff in this action and an individual giving testimony in a civil action, your criminal history especially in relation to charges or convictions related to fraud or dishonesty are relevant to this action and proportional to the needs of this case because it appears that many your claims will be supported by your testimony should this case go to trial.

Interrogatory No. 9: *Identify all account(s) and/or webpage(s) with any social networking websites (including, but not limited to, X (formerly known as "Twitter"), Facebook, MySpace, LinkedIn, Snapchat, TikTok, Instagram), or any other message board(s), webpage(s), website(s), blog(s), and all usernames that you have had in your name or on you behalf since November 21, 2023, to the present, and for each provide: a) the identifying account or username; b) the date the account was activated; c) whether the account is still active; and d) if the account is not active, the date it was deactivated and why it was deactivated.*

Your Response: *Plaintiff objects as intrusive and irrelevant. No responsive information will be provided.*

You have previously sent Defendants discovery requests seeking information regarding the viewing and monitoring of your social media accounts. There is no good faith basis for you to ask Defendants to expend time and resources to identify all individuals who viewed your social media accounts and then respond to this Interrogatory asking you to identify such social media accounts by stating that the request is intrusive and irrelevant.

Interrogatory No. 15: *Identify all legal entities that you own, operate, or participate as a member in, including but not limited to Nelson Funding Group, LLC.*

Your Response: *Plaintiff objects as irrelevant and intrusive. Nelson Funding Group, LLC, and other entities have no relation to this case.*

You have claimed economic and consequential damages in this case, information regarding legal entities that you control and can accrue profits and losses from are relevant to this case.

Thank you for your prompt attention to this matter. We look forward to receiving your cured Responses to Defendants' First Set of Requests for Production and First Set of Interrogatories. Please note that a failure to cure will result in a Motion to Compel these responses.

Very truly yours,



T. Chase Samples
(864) 672-8034 Direct
Chase.Samples@jacksonlewis.com
Jackson Lewis P.C.

JacksonLewis

Ms. Debra Nelson
November 3, 2025
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EXHIBIT D

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

DEBRA NELSON	)	
	)	C.A. No.: 2:25-CV-00405-RMG-MGB
Plaintiff,	)	
	)	
v.	)	
	)	
Curtiss Wright Electro Mechanical Corp.	)	
d/b/a Curtiss-Wright Steam and Air	)	
Solutions	)	
STEPHANIE LANIER, and	)	
SHANE SABLITSKY,	)	
	)	
Defendants.	)	

**PLAINTIFF'S ANSWERS TO DEFENDANT'S FIRST SET OF REQUESTS FOR
PRODUCTION OF DOCUMENTS**

Pursuant to **Rule 34 of the Federal Rules of Civil Procedure**, Plaintiff **Debra Nelson** submits the following responses and objections to Defendant **Curtiss-Wright Corporation's First Set of Requests for Production of Documents**. These responses are based on information presently available and are subject to supplementation or amendment as discovery continues.

GENERAL OBJECTIONS

1. Plaintiff objects to each request to the extent that it seeks documents protected by the attorney-client privilege, work-product doctrine, or any other applicable privilege.
2. Plaintiff objects to each request to the extent that it is overly broad, unduly burdensome, irrelevant, or seeks information not proportional to the needs of this case under Rule 26(b)(1).
3. Plaintiff objects to each request that seeks disclosure of confidential personal, financial, or medical information that is not relevant or necessary to any claim or defense.
4. Plaintiff reserves the right to supplement, amend, or modify these responses as additional information becomes available.

SPECIFIC RESPONSES

Request No. 1

All responsive communications and recordings are already produced and filed at ECF 177 and ECF 40.

Request No. 2

Case No. 2:25-CV-00405-RMG-MGB

Plaintiff identifies a witness statement from **Joe Couillard**, dated **May 19, 2023**, relating to her employment with Curtiss-Wright. This document is already in **Defendant's possession**, having been previously produced in earlier discovery and filings. Plaintiff therefore has no additional responsive documents to produce at this time but reserves the right to supplement if further witness statements are obtained during discovery.

Request No. 3

All responsive communications and recordings are already produced and filed at ECF 40.

Request No. 4

Plaintiff has conducted a reasonable search and has not located any additional employment-related materials other than those already in Defendant's possession, including emails, disciplinary records, or job-duty documentation. Plaintiff will supplement this response if additional responsive materials are located.

Request No. 5

Already in Defense's possession.

Request No. 6

Attorney fees \$2,250; consultation fees totaling \$650; lost wages from 11/15/2023 to 3/15/2024 \$22,781.44. These amounts are estimates based on records available and will be supplemented as discovery continues.

Request No. 7

Plaintiff can request a letter from her therapist to support claims of emotional distress.

Request Nos. 8 & 9

Plaintiff objects that the requests seek confidential medical information not relevant or proportional to the needs of this case and protected by HIPAA. Plaintiff will provide a summary letter from her therapist in lieu of medical records.

Request No. 10

Plaintiff objects as overly broad and intrusive. Plaintiff has been continuously employed since March 18, 2024, and has not submitted further job applications. No responsive documents are in Plaintiff's possession. Plaintiff will supplement if any are later located.

Request No. 11

Plaintiff objects as overly broad and intrusive. Plaintiff has been employed since March 18, 2024, and does not possess additional responsive income or compensation records related to this action. Plaintiff will supplement if any become available.

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Request No. 12

Plaintiff objects that this request seeks private financial records not relevant or proportional to the needs of this case. No responsive tax returns will be produced absent a protective order. Plaintiff reserves the right to supplement if ordered by the Court.

Request No. 13

Plaintiff objects as irrelevant to the claims or defenses in this matter and disproportionate to the needs of the case. No responsive documents are in Plaintiff's possession.

Request No. 14

Already in Defense's possession.

Request No. 15

No expert at this time.

Request No. 16

No correspondence between Plaintiff and Brian Fogarty, Michelle Broman-Bolton, TJ Hines, Patrick Ingram, and Matthew Claxton. Text messages ECF 177 (Jeff Womack). Emails between Plaintiff, Cody Diehl, Jerod Froetschner, Stephanie Lanier, Shane Sablotsky, Paul Ferdenzi, April James, and Lynn Bamford are already in Defense's possession.

Request No. 17

Plaintiff has conducted a reasonable search and has not located any documents showing that she applied for an NDT Lead Inspector position. Plaintiff was never notified that such a position existed. Plaintiff will supplement if any such documents are later discovered.

Request No. 18

Plaintiff objects as overly broad and seeking information for purposes of harassment. Plaintiff declines to produce her current resume because her present employment is unrelated to the issues in this litigation. No responsive documents will be produced absent Court order.

Request No. 19

Plaintiff has not obtained any documents from non-parties other than those already produced by Defendant. Plaintiff will supplement if additional documents are later obtained.

Request No. 20

Defense has these documents in their possession from NLRB Case 10-CA-337272. Plaintiff can produce letters to the White House and Inspector General complaints. EEOC and SCHAF complaints are already in Defense's possession.

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Request No. 21

All responsive communications and recordings are already produced and filed at ECF 40.

Request No. 22

Plaintiff can produce letters to the White House and Inspector General complaints. Letter to CEO Lynn Bamford is already in Defense's possession.

Request No. 23

Plaintiff cannot confirm or deny the identity of the actors responsible for any alleged intrusion. No additional responsive documents are currently in Plaintiff's possession. Investigation and discovery are ongoing, and Plaintiff will supplement as appropriate.

Request No. 24

Plaintiff objects that this request is overly broad and seeks documents already in Defendant's possession. After a reasonable search, Plaintiff has no additional responsive documents. Plaintiff will supplement if further documents are located.

Request No. 25

Emails with Shane Sablotsky, Stephanie Lanier, and James Lawrence are already in Defense's possession.

Request No. 26

Plaintiff has conducted a reasonable search and has not located additional documentation regarding adjusted work hours. Management did not produce evidence requested during employment. Plaintiff will supplement if discovered in Defendant's production.

Request No. 27

Text messages from Jeff Womack dated November 15, 2023.

Request No. 28

Email dated **July 17, 2023**, already in Defense's possession.

Request No. 29

Letters to the White House, complaints to the Inspector Generals, and complaints to OFCCP and the Department of Labor.

Request No. 30

Case No. 2:25-CV-00405-RMG-MGB

Defendants intercepted Plaintiff's email from Paul Ferdenzi. Plaintiff witnessed it while sitting at her computer and speaking with Jeff Womack. Plaintiff cannot confirm or deny other intrusions because discovery is not complete.

Request No. 31

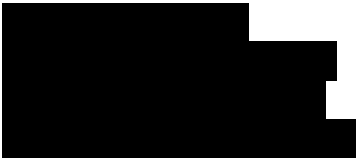
Write-up given by Stephanie Lanier on September 20, 2023, regarding an email Plaintiff replied to on September 15, 2023.

Request No. 32

Complaint against Brian Fogarty (May 19, 2023), bullying by Michelle Broman-Bolton, and complaints of printer access restriction. No additional responsive documents are currently located; Plaintiff will supplement if additional materials are found.

Respectfully submitted 23rd of October, 2025,

Debra Nelson
Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that on **October 23, 2025**, a true and correct copy of the foregoing **Plaintiff's Answers to Defendant's First Set of Requests for Production of Documents** was served upon the following counsel of record via **email and U.S. Mail**:

T. Chase Samples, Esq. - chase.samples@jacksonlewis.com
Joseph V. Valenza, Esq. - joseph.valenza@jacksonlewis.com
Jackson Lewis P.C.
15 South Main Street, Suite 700
Greenville, SC 29601
Respectfully submitted,

Debra Nelson
Plaintiff, Pro Se



EXHIBIT E

Debra E Nelson
Nelson, Debra Vs. Curtiss Wright Electro Mechanical Corp.

October 28, 2025

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IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Debra Nelson,

Plaintiff,

V.

C.A. No. 2:25-cv-00405-DCN-MHC

Curtis Wright Electro Mechanical

Corp. d/b/a Curtiss-Wright Steam

and Air Solutions, Stephanie Lanier,

and Shane Sablotsky,

Defendants.

DEPOSITION: Debra E. Nelson

DATE: October 28, 2025

TIME: 10:20 a.m. EST

LOCATION: Veritext Legal Solutions

28 Bridgeside Boulevard, Suite 205

Mount Pleasant, SC

TAKEN BY: Counsel for the Plaintiff

REPORTED BY: Rosemary F. Grogan, CSR, RPR

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1 like that, but I don't know. There's a whole world of
2 stuff that's going on that I have no knowledge of.

3 So I don't know who's doing it, but I'm trying
4 my best to find out.

5 Q. Bear with me one second.

6 How much money are you looking for to get out
7 of this case, Ms. Nelson?

8 A. A lot. Considering everything that I've gone
9 through in the last two years, I'm looking to be well
10 compensated and it's mostly due to the stress and the
11 constant worry of who's listening to me, who's following
12 me. All my thoughts of having any privacy has been
13 robbed. I don't have any confidence that any time I get
14 on the phone I'm not being listened to.

15 And the same thing with the emails. They
16 ain't blocking it anymore, but I don't have any
17 confidence that anything I do is private. And then the
18 attempts to try to set me up with these random guys
19 messaging me. Come on now, it's not going to happen.
20 So my whole life has changed because of this?

21 Q. But how much money are you looking for?

22 A. I'm still debating, but it's going to be a
23 lot.

24 Q. And most of that comes from, you said, the
25 stress you've experienced. Is that like emotional

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1 distress type damages?

2 A. Oh, definitely, emotional distress.

3 Q. You were only out of work for about four
4 months; is that right?

5 A. Yes.

6 Q. So your lost wages are basically limited to
7 that four-month period of time between November 21st,
8 2023, and then March of 2024, when you started this new
9 job?

10 A. Correct.

11 Q. Then the new job you're actually making more
12 money than you were making at Curtiss-Wright,
13 significantly more?

14 A. Oh, yeah, because they know my certification.

15 Q. Other than the therapist you mentioned
16 earlier -- remind me of her name, Sue?

17 A. Sue Shealy.

18 Q. Have you treated with any medical providers in
19 connection with the claims in this case?

20 A. No. I don't like to -- I don't want to be put
21 on any medication or anything, but I -- I talk to Sue
22 Shealy when I need to.

23 Q. How much do you pay Ms. Shealy for her
24 services?

25 A. Whatever she charges me for the visit.